

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

**NOTICE OF MOTION AND MOTION
TO DECLARE PLAINTIFF A
VEXATIOUS LITIGANT AND TO
REQUIRE SECURITY**

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Date: August 26, 2026

Time: 9:00 A.M.

Dept: 302

Defendants.

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

PLEASE TAKE NOTICE that on the August 26, 2026, located at 400 McAllister St., San Francisco, CA, 94102, Defendant CSAA INSURANCE EXCHANGE ("Defendant") will and hereby do move the court for an order:

1. Declaring Plaintiff FRANCISCUS DYLAN ROSARIO, a vexatious litigant pursuant to Code of Civil Procedure section 391(b); and

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1 2. Ordering Plaintiff to furnish security pursuant to Code of Civil Procedure section 391.3.

2 This motion is made on the grounds that Plaintiff has repeatedly relitigated issues already
3 decided by this Court and has engaged in a pattern of filing unmeritorious and duplicative discovery
4 motions.

5 This motion will be based upon this Notice of Motion, the accompanying Memorandum of
6 Points and Authorities contained herein, the Declaration of Tyler O'Connell, all other pleadings,
7 papers, and records on file in this action, and upon any other evidence that may be submitted at the
8 time of the hearing.

9 **TENTATIVE RULINGS:**

10 The San Francisco Superior Court adopts CRC 3.1308 as the tentative ruling procedure in
11 civil law and motion and discovery matters. Parties may obtain a tentative ruling issued by the Law
12 and Motion and Discovery Departments by telephoning (415) 551-4000 or visiting the court's
13 website at <https://sf.courts.ca.gov/> and clicking the online services link. Tentative rulings are
14 generally available by 3:00 p.m. the day before the hearing. A tentative ruling that does not become
15 available until after 3:00 p.m. is a late tentative ruling. A late tentative ruling will indicate that the
16 ruling is late. If a tentative ruling is late, the parties must appear unless all parties agree to submit to
17 a late tentative ruling in which case the Court will adopt the late tentative ruling.

18
19 Dated: July 21, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

21 By _____
22 Chad S. Tapp
23 Tyler J. O'Connell
24 Attorneys for Defendant
25 CSAA INSURANCE EXCHANGE
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1 **Rosario v. CSAA Insurance Exchange; et al.**
2 **San Francisco County Superior Court Case No.: CGC-25-631802**

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On July 21, 2026, I
6 served the following document: **NOTICE OF MOTION AND MOTION TO DECLARE
7 PLAINTIFF A VEXATIOUS LITIGANT AND TO REQUIRE SECURITY**

8	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 9 the above referenced document(s) by registered or certified mail, return receipt requested, with the United 10 States Postal Service, in a sealed envelope with postage fully prepaid.
11	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 12 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's 13 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 14 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning 15 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 16 party's residence with some person not younger than 18 years of age between the hours of eight in the 17 morning and six in the evening.
18	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an 19 overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for 20 collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery 21 carrier.
22	X BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail 23 address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 24 1010.6(a)(2), (4) and (5).

25 Addressed as follows:

26 **PLAINTIFF, IN PRO PER**

27 Franciscus Dylan Rosario
28 7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing
is true and correct. Executed on Sacramento, California on July 21, 2026.

Serena Blithe

Serena Blithe